

SENATE No. 1087

The Commonwealth of Massachusetts

PRESENTED BY:

James B. Eldridge

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to end lifetime parole for juveniles and emerging adults.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	
<i>Brandy Fluker-Reid</i>	<i>12th Suffolk</i>	
<i>Christopher J. Worrell</i>	<i>5th Suffolk</i>	
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>2/11/2025</i>
<i>Jason M. Lewis</i>	<i>Fifth Middlesex</i>	<i>2/11/2025</i>
<i>Liz Miranda</i>	<i>Second Suffolk</i>	<i>3/24/2025</i>
<i>Patricia D. Jehlen</i>	<i>Second Middlesex</i>	<i>5/28/2025</i>
<i>Pavel M. Payano</i>	<i>First Essex</i>	<i>7/8/2025</i>
<i>Adam Gómez</i>	<i>Hampden</i>	<i>9/9/2025</i>

SENATE No. 1087

By Mr. Eldridge, a petition (accompanied by bill, Senate, No. 1087) of James B. Eldridge, Brandy Fluker-Reid, Christopher J. Worrell, Joanne M. Comerford and others for legislation to abolish sentences of life without parole for individuals who committed crimes while they were considered minors or young adults. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to end lifetime parole for juveniles and emerging adults.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 52 of chapter 119 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting after the definition of “Punishment” the
3 following definition:-

4 “transformational youth”, a person: (1) who received a life sentence after being convicted
5 of first- or second-degree murder and who was at least 14 years of age but younger than 21
6 years of age at the time of commission of the offense, or (2) who received a life sentence or after
7 being convicted of manslaughter while violating the provisions of sections 102 to 102c,
8 inclusive, of chapter 266 and who was at least 14 years of age but younger than 21 years of age
9 at the time of commission of the offense; provided, further that this definition shall apply
10 retroactively to include a person who received a life sentence for the any of the offenses
11 described above and was at least 14 years of age but younger than 21 years of age at the time of
12 commission of the offense.

SECTION 2. Said section 52 of said chapter 119, as so appearing, is hereby further amended by inserting after the word “nineteen”, in line 28, the the following words:-

provided, however, that the definition of “youthful offender” shall exclude a “transformational youth.”

SECTION 3. Chapter 127 of the General Laws is hereby amended by inserting after section 133E the following section:-

(a) After a transformational youth has lived on parole for 3 years without committing an act that constitutes a felony or misdemeanor violating the law, the parole board shall issue a certificate of termination of sentence to said transformational youth pursuant to section 130A of chapter 127 within 30 days of the end of said 3 years on parole.

(b) Within 5 calendar days of the date on which a transformational youth has lived on parole for 3 years without violating the law, the transformational youth’s parole officer shall submit a notice of impending parole termination to the parole board’s office of the general counsel notifying the office that the individual transformational youth lived on parole for 3 years without violating the law. Within 5 calendar days of the date of receipt by the office of the general counsel of the parole officer’s notice of impending termination of parole for a transformational youth, the office of the general counsel shall provide a notice of impending termination of parole to the Parole Board for review and vote.

(c) Within 10 calendar days of the date of receipt by the Parole Board of the notice of impending termination of the individual transformational youth’s parole, the Parole Board shall vote in open session to issue a certificate of termination to the individual transformational youth

pursuant to section 130A of chapter 127 if the board determines that the transformational youth has not committed an act that constitutes a felony or misdemeanor in the 3-year period.

(d) Within 5 calendar days of the Board's vote to grant a Certificate of Termination to an individual transformational youth, the Board shall furnish a copy of the Certificate of Termination to the following: (1) the individual transformational youth; (2) the commissioner and the judge who imposed the sentence, in accordance with the terms of section 130A of chapter 127; in the event the judge who pronounced sentence is retired or deceased, a copy of the Certificate of Termination shall be forwarded to the Regional Administrative Justice of the Superior Court for the County in which the transformational youth was sentenced; and (3) all certified CORI petitioners and victims as enumerated in section 178A of chapter 6 and section 1 of chapter 258B.

(e) If an individual transformational youth has served more than 3 years on parole without violating the law as of the effective date of this Act, the individual transformational youth's parole officer shall, within 30 days of the effective date of this Act, submit a notice of impending parole termination to the office of the general counsel notifying the office of the general counsel that the individual transformational youth lived on parole for more than 3 years. Within 15 calendar days of receipt of said notice by the office of the general counsel, the office of the general counsel shall provide a notice of impending termination of parole to the Parole Board for review and vote. Within 15 calendar days of the Board's receipt of said notice, the Board shall vote in open session to issue a Certificate of Termination to the transformational youth. Notification to all parties and individuals regarding the issuance of said Certificate of Termination to a transformational youth, including to the subject transformational youth, shall be in accordance with subsection (d).

(f) If an individual transformational youth is already on parole on the effective date of this Act, and has lived less than 3 years on parole on the effective date of this Act, the time that said transformational youth has lived on parole on the effective date of this Act shall be counted as constituting time lived on parole for purposes of termination of parole. The Board shall issue a Certificate of Termination of sentence to said transformational youth pursuant to Section 130A of chapter 127, and notify all parties and individuals of the Certificate of Termination of sentence, after the transformational youth has lived for 3 years on parole, in accordance with subsection (d).